STANDARD OPERATING PROCEDURE			G-8310
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **08/18/20**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL		RESOURCES LAW ENFORCEMENT OFFICERS SAFETY ACT, NO. 108-277		
SUBJECT CONCEALED CARRY PERMITS FOR RETIRED AND SEPARATED LAW ENFORCEMENT OFFICERS		CROSS REFERENCE G-8300 FIREARMS TRAINING AND QUALIFICATION		

I. Purpose:

The purpose of this policy is to establish the guidelines for issuing concealed carry permits to retired and separated law enforcement officers.

II. Policy:

On July 22, 2004, the Law Enforcement Officers Safety Act was enacted. The Act amends the Gun Control Act to exempt qualified active and retired law enforcement officers from State and Local laws prohibiting the carry of concealed firearms. It shall be the responsibility of the Lead Firearms Instructor to process all applications for concealed carry permits received by retired and separated law enforcement officers.

III. Procedure:

A. Qualified Retired or Separated Law Enforcement Officer: Any Sarpy County Sheriff's Office Law Enforcement Officer who has retired or separated and meets the following criteria may apply for a Separated Law Enforcement Officer Concealed Carry Permit at the Sarpy County Sheriff's Office.

1. The officer retired in good standing as a certified law enforcement officer.
2. The officer has not received a disability for mental illness.
3. The officer has an aggregate of at least ten (10) years of service as a Sarpy County Sheriff's Office certified law enforcement officer.
4. The retired officer has a non-forfeitable right to benefits under the State of Nebraska's County Employee Retirement System.
5. The officer has successfully passed a Sheriff's Office background check.
6. The officer is not under the influence of alcohol or drugs while making the application.

7. The officer is not prohibited by federal law from receiving or possessing a firearm.
8. The officer must be a retired or separated Sarpy County Deputy Sheriff.
9. Retired or separated applicants from agencies other than the Sarpy County Sheriff's Office may qualify with the approval from the Sheriff.

B. Application Process:

1. The officer shall complete a Separated Officer Concealed Carry Permit Application form available at the Sheriff's Office reception desk.

2. All applications shall be forwarded to and processed by Support Staff/Backgrounds Unit who shall:

   a) Ensure the application is completed including required documentation.

   b) Complete a records check on the applicant. The records check shall consist of: Sarpy County and Douglas County background checks, a state and nation wide warrants check, and a NCIC criminal history check.

3. After the records check is completed the Staff Support/Backgrounds Unit shall forward the application to the Lead Firearms Instructor who shall:

   a) Contact the applicant and schedule a date and time to complete the State Qualification Course. This qualification shoot will take place two times per year and will be determined by Lead Firearms Instructor.

   b) Arrange for the issuance of the photographic Separated Officer Identification for approved applications and review restrictions with the retired or separated officer.

   c) Applicants from agencies other than the Sarpy County Sheriff's Office, which have received approval to qualify from the Sheriff, shall receive a Firearms Qualification Form to submit to the agency from which he or she retired or separated. A Sarpy County Separated Officer Identification shall not be issued.

   d) Forward the completed application to the Staff Support/Backgrounds Unit who shall maintain all retired officer concealed carry permits and application in LRMS.

C. Qualification for Qualified Retired Officers:

1. All retired and separated officers shall adhere to all range procedures and safety guidelines (see G-8300 Firearms Training and Qualification). Failure to do so shall result in dismissal from the range and the denial of the application.

2. The expense of all ammunition shall be the responsibility of the retired or separated officer.

3. The minimum qualifying score shall be seventy (70) percent.

4. Retired and separated officers shall be allowed a maximum of three (3) attempts to qualify. Failure to qualify after three (3) attempts shall result in the denial of the application.

5. Upon successful completion of the qualified course and applicable background check, the officer shall be provided a copy of the Separated Law Enforcement Officer Carrying of Concealed Firearms Qualification form for proof of yearly qualification.

D. **Restrictions:** The Law Enforcement Safety Act does not authorize retired or separated officers to do the following:

1. Carry a machine gun, silencer, or other destructive device.

2. Act in the capacity of a Sarpy County Sheriff's deputy.

3. Carry a firearm on any state or local government property, installation, building, base or park with laws restricting the carry of firearms.

4. Carry a firearm on any other property which expressly prohibits the carrying of firearms (e.g. airports, aircraft).